
THE PROPOSED INTERIM SELF-GOVERNING AUTHORITY

Devanesan Nesiah

The peace process has come up against a wall of obstruction. The arithmetic of party affiliation of Members of Parliament (even allowing for a degree of fluidity in party loyalties) plus the lack of UNF – PA cooperation has ensured that no solution to the constitutional crisis is imminent. It appears that the PA considers that it would be political suicide to offer parliamentary cooperation that would enable the UNF to gain from any required constitutional amendment – as did the UNP when it was in the opposition. Thus, in terms of a legislative breakthrough, the UNF has no credible offer, and the LTTE has nothing to look forward to in the near future, unless the latest developments lead to a national government or other transformation of UNF-PA relations; if that happens, some sections of this paper would need to be re-written.

Granted that no dramatic breakthrough is imminent, do the LTTE proposals indicate possibilities of such developments in the future? There have been conflicting interpretations of the Thimpu Principles (do they favour internal or external self-determination?), but the developments in Oslo and Tokyo are less ambiguous in their focus. The Tokyo Declaration “commends both parties for their commitment to a lasting and negotiated peace based on a federal structure within a united Sri Lanka.” Earlier, in Oslo, “The parties agreed to explore a solution founded on the principle of internal self-determination in areas of historical habitation of the Tamil-speaking peoples, based on a federal structure within a united Sri Lanka. The parties acknowledged that the solution had to be acceptable to all communities.” The Oslo Agreement goes further to renounce violence and to affirm respect for human rights, democracy, rule of law and ethnic harmony. Do the LTTE proposals fall within those parameters, or do they signal a departure? What would be the best approach to the proposals? Many of the clauses permit multiple interpretations. These could be seen as obstacles with dangerous potential, or as openings facilitating re-definition and progress towards sustainable peace.

If the assumption is made that the LTTE is unreformably fascist, negotiations would be meaningless and war may be inevitable. But if a return to war is ruled out as unacceptable, there is no alternative to re-activating the stalled peace process. Significantly, for the first time, the LTTE has gone beyond rhetorically re-affirming general principles to formulating and submitting specific proposals. On the extent of the territory to be administered by the interim authority and the duration of the interim period there seem to be no fundamental conflicts between the UNF and LTTE proposals, but on other issues the UNF proposals are predictably minimalist and the LTTE proposals maximalist. This is certainly

so in respect of the powers to be devolved and the LTTE role within the Authority. The most positive approach would be to see these as the first bids in what would inevitably be a long, hard bargain.

Status-Quo

It is possible that the present no war-no peace situation, with UNF-PA maneuvering for political advantage, and the armed forces-LTTE maneuvering for military advantage may continue. This could be tolerable to the UNF since it currently enjoys the advantages of holding office. It could also be tolerable to the PA in that it could possibly be entertaining hopes of coming into office through engineering a collapse of the UNF government. But for the LTTE, a long extension of the status quo would be intolerable. On the one hand, its resources and the capacity and will of its cadres to successfully resume battle may erode. On the other, the long suffering population of the North and East are anxious that physical security should be guaranteed through a secure peace agreement and, further, that they too should be able to access a share of the socio-economic development that may become available to those elsewhere if the no war situation continues. A necessary (though not sufficient) condition for these aspirations is that a workable, mutually agreed interim administration is installed. Thus, in the absence of a satisfactory interim administration, the no war-no peace situation is likely to become increasingly unstable – hence the urgency.

Apart from the transient perspectives arising from the fact that currently the UNF holds office and the PA is in the opposition, the differences between the perceptions of the UNF and the PA leadership on either the interim administration or the eventual solution may be marginal in comparison either to internal differences within the UNF and the PA, or to the perceptions of the LTTE. The UNF government made certain proposals in July August in respect of the interim administration, and the LTTE made counter-proposals in October. Resolving the LTTE-UNF differences will be very difficult, more so because of the internal differences within the UNF, and also because the PA holds an effective veto on the solution. Thus negotiating an agreement on this issue, i.e., on the Interim Self-Governing Authority (ISGA), will have no assurance of a successful outcome.

Hopefully, at some stage in the negotiations the UNF and the PA may be motivated to cooperate at least to the extent of agreeing on broad principles governing negotiations with the LTTE on the ISGA and other critical issues. Even if this happens, progress will not be

easy. Several components in the current proposals will be clearly unacceptable to both the UNF and the PA. But do they give a clue as to whether eventual compromise and consensus is possible? We need to examine the proposals, item by item, after first looking at the (UNF) government proposals.

The government proposals

The Sri Lanka Government's Interim Administration Proposals, July/August 2003, to which the LTTE responded in October 2003, are more general and much less detailed than the LTTE proposals. The differences in scope and detailed modalities, which "shall be subject to discussion between the Parties," relate to the areas of police and security, land, and revenue.

The government proposal refers to "the understanding between the Parties during plenary sessions of negotiations that a Muslim delegation should be accommodated when issues of concern to the Muslim population are being deliberated," and goes on to specify that, "A Muslim delegation must participate in the discussions relating to the establishment of a provisional administrative structure for the Northern and Eastern Provinces; and that it should be open to the SLMC to submit a separate proposal pertaining to the establishment of the above mentioned structure."

The government proposal is for "a Provisional Administrative Council" composed of nominees of the government, LTTE and SLMC, with a majority for the LTTE but with weighted representation for the Muslims and Sinhalese.

There will either be two Chairpersons, one nominated by the LTTE and the other by the Government from among the Members of the Council, both holding veto powers; or one elected Chairperson with the support of a majority of the representatives of the Muslim and Sinhalese communities needed for decisions affecting their communities.

The Chief Executive will be a Special Commissioner appointed by the government with the consent of the majority of the Council.

Eight District Committees appointed by the Council are proposed, each reflecting the ethnic composition of the District and chaired by a Council Member, with the District Secretary (Government Agent) as the Secretary and Chief Executive Officer. District Sub-Committees, appointed by the District Committees with the concurrence of the Council, are also proposed for sub-divisions of the Districts.

Three special subject-specific Committees, each with not more than Four Council Members of whom one will chair, are also proposed, as follows:

- a) An Economic Affairs Committee
- b) An Infrastructure Committee
- c) An Essential Services Committee

The arrangement is envisaged to "be in operation for a limited period as agreed by the parties, however, subject to the arrangement being reviewed by the parties every six months."

The LTTE's Proposals for an Interim Self-Governing Authority

Preamble

This is mostly well drafted and broadly acceptable except in the following respects:

- i) There is no reference to the concerns of the Muslims of the North and East, or to the need to engage their leaders in working out the structure of the ISGA – unless "the right to participate in the formulation of their role in the ISGA" is interpreted broadly to include the above.
- ii) There is no reference to the need to engage the PA in working out the structure of the ISGA.
- iii) The underlying assumption that "the Ceasefire Agreement, including the role of the Sri Lanka Monitoring Mission (SLMM), and the establishment of SIHRN and the North East Reconstruction Fund (NERF)" may override the Constitution in establishing the ISGA is flawed. Though the Sri Lankan Tamils, who were virtually excluded from the drafting of the 1972 and 1978 Constitution may be justified in rejecting them, the Government of Sri Lanka cannot disregard constitutional provisions. That this dilemma cannot be resolved without the concurrence of at least the PA has not been acknowledged.

1. Interim Self-Governing Authority

The proposal envisages ISGA control of the entirety of the five Northern and three Eastern districts till a final negotiated settlement is reached.

Perhaps this is as it should be, subject to the understanding that it is an interim arrangement, the participation of the Muslims is interpreted broadly as indicated above, and also adequate space is provided for the participation of the Sinhalese of the North and East. Any re-grouping of the districts and divisions or other re-demarcation of the boundaries will require extensive, politically sensitive negotiations, and the establishment of the ISGA cannot await the completion of such negotiations. A time frame (contained within the life time of the ISGA) could be set for these negotiations which could be conducted by a team selected by consensus from among the Tamil, Muslim and Sinhalese leaders of the North and East.

2. Composition of the ISGA

The proposal is for the LTTE to have an absolute majority but for Muslims and Sinhalese also to be represented; and for the ISGA to

elect a Chairperson/Chief Executive who will have unfettered power to appoint (and to revoke the appointment of) a Chief Administrator.

Tamils constitute over two-thirds of the proposed ISGA territory, and are entitled to have an absolute majority in the body (as conceded in the central government proposal), but it will help if the Muslims and Sinhalese are overrepresented in proportion to their numbers (as suggested in the central government proposal). Further, there should be appropriate geographical distribution. For the system to work, the Tamil members should be acceptable to the LTTE, the Muslim members to the SLMC (this is conceded by the central government but the LTTE nearly refers to appointment by "the Muslim community in the North East") and there should be UNF-PA concurrence on the Sinhalese members (this is not conceded by either centre or the LTTE). It might be possible to negotiate a consensus on this basis.

Regarding the appointment of the Chief Executive and deputies, it may be best for the appointments to be subject to endorsement by consensus within the ISGA so as to ensure that the Muslims and Sinhalese have a say; if there are differences of opinion, a compromise should be sought. The central government proposal is for the appointment to be made by the centre with the concurrence of the ISGA, but so long as consensus within the ISGA is prescribed, there should be no objection to the appointment being made by the ISGA. In line with the central government proposal, consensus within the ISGA may be interpreted as requiring not only an absolute majority but also a majority among the Muslim and Sinhalese members.

The administrative cadres at every level, in the region, districts and localities, should reflect the ethnic composition of the population served. The central government too should accept this principle.

All ISGA decisions including appointments should be by consensus, with an institutional mechanism in place to resolve differences if a compromise cannot be reached. On most matters a consensus should be possible. It is on this understanding that the following comments are formulated.

3. Elections

The proposal is for the ISGA to function till an Agreement is reached or till the expiry of five years, whichever is earlier, and for elections to be held thereafter.

The proposal is unexceptionable, subject to the assumption that the Election Commission is appointed by consensus within the ISGA.

4. Human Rights

These rights are asserted with commendable clarity.

What could be suspect is the implementation mechanism, which hinges on a Human Rights Commission appointed by the ISGA. However, this proposal is welcome, subject to the Human Rights Commission being appointed by consensus within the ISGA, with the further provision for appeals to the Human Rights Commission of Sri Lanka.

5. Secularism

This is asserted as applicable to the North East.

This is commendable.

6. Prohibition against Discrimination

It is sought to entrust this task to the ISGA.

There should be express provision for complaints that cannot be resolved at a lower level to ultimately reach the Human Rights Commission of Sri Lanka.

7. Prevention of Bribery and Corruption

It is sought to entrust this task to the ISGA.

Perhaps there should be a Commission to Investigate Allegations of Bribery and Corruption appointed by the ISGA, with provision for appeals to the Sri Lanka Commission to Investigate Allegations of Bribery and Corruption.

8. Protection of All Communities

This principle is asserted.

This is commendable, with the proviso that the relevant laws, regulations, rules, orders and decisions should be subject to action in courts of law.

9. Jurisdiction of the ISGA

It is sought to establish ISGA control of governance in the North and East.

The legal and administrative authority conferred on the ISGA will be time bound within the interim period, unless duly revalidated before the expiry of that period. As proposed, these should be negotiated with the central government. They should also be subject to the various reservations specified above.

10. Separation of Powers

It is sought to establish special institutions for the administration of justice.

Provided the regional courts come under the jurisdiction of the Sri Lankan courts at the apex, the proposal is broadly acceptable, subject to negotiations with the central government on the details, and the various reservations specified above.

11. Finance

It is sought to establish ISGA control over Finance.

The proposal is broadly acceptable, subject to negotiations with the central government, which has a legitimate monitoring interest.

12. Powers to Borrow, Receive Aid and Trade

It is sought to assign these powers to the ISGA.

The proposal is broadly acceptable, subject to negotiations with the central government, which has a legitimate monitoring interest.

13. Accounting and Auditing of Funds

It is sought to establish ISGA control over accounting and auditing.

The proposals are broadly acceptable, subject to negotiations with the central government, which has a legitimate monitoring interest.

14. District Committees

It is sought to establish District Committees under ISGA leadership and direction.

The proposal is broadly acceptable, subject to the requirement that the membership of each District Committee should (as proposed by the central government) broadly reflect the ethnic composition of the population of that district. It should be helpful to accept the central government proposal that the Principal Executive Officer and the Secretary at the district level should be, ex-officio, the District Secretary (Government Agent). In turn, the ISGA should be consulted in respect of all appointments and transfers of District Secretaries, Divisional Secretaries and Grama Niladharies in the North and East.

15. Administration

It is sought to establish ISGA control over the administration.

This is acceptable, subject to the requirement set out in 2. above that the administrative cadres at every district and locality should reflect the ethnic composition of the population served.

16. Administration of Land

It is sought to establish ISGA control over all land that is not privately owned.

This should be negotiated with the central government, and guidelines worked out covering the entirety of the island, with particular attention to the need to protect various reservations, to replant destroyed forests, and to ensure that settlement/ resettlement schemes do not adversely affect the security, identity and welfare of the local population.

17. Resettlement of Occupied Lands

It is sought to reclaim, for the local population, the lands occupied by the armed forces of the centre, and to secure compensation for past dispossession.

There is a good case for adequate compensation, but there are security constraints that may inhibit a total evacuation by the armed forces. This should be negotiated with the central government with a view to securing a compromise.

18. Marine and Off-Shore Resources

It is sought to establish ISGA control over these resources.

This should be negotiated with the central government with a view to reaching a compromise that would take account of both equity and environmental considerations.

19. Natural Resources

It is sought to establish ISGA control over these and the benefits derived from them.

This should be negotiated with the central government with a view to reaching a compromise that would take account of both equity and environmental considerations.

20. Water Use

It is urged that the centre and the ISGA should ensure that the river waters are equitably shared in terms of internationally recognized principles.

This proposal is unexceptionable.

21. Agreements and Contracts

It is suggested that future agreements falling within the jurisdiction of the ISGA should be with the ISGA, which should be consulted on any changes to existing agreements.

This is unexceptionable.

22. Settlement of Disputes

It is suggested that to resolve disputes that cannot be resolved by any other means, a three-person Arbitration Tribunal should be

established, with one nominee from the centre, one from the LTTE, and the Chairperson jointly appointed by the two Parties or by the President of the International Court of Justice.

This is essential and acceptable, subject to the qualification that the nominee of the LTTE to the Arbitration Tribunal should receive endorsement by consensus within the ISGA.

23. Operational Period

It is suggested that this will extend till a government for the North-East, pursuant to a permanent negotiated settlement, is established in terms of this Agreement. However, if no settlement is reached by the end of four years, the negotiations will continue and extend

to “adding, clarifying and strengthening the terms of this Agreement.”

This is unexceptionable.

Conclusion

The gap between the UNF and LTTE proposals in respect of the interim administration is large but not inherently unbridgeable. But vital pre-conditions are two more difficult divides, viz. UNF-PA and LTTE-SLMC. In effect, the two-party agreement will have to progressively transform into a four-party agreement. This cannot be achieved instantaneously, but the no war-no peace situation cannot hold indefinitely. Time is of the essence. ■

Dr. Devanesan Nesiah is the Director of Marga Institute

New

COLORS of the ROBE Religion, Identity and Difference

by Ananda Abeysekara
Published by University of South Carolina Press.

Price Rs. 3000/-

Poised to spark debate among scholars of religious studies and other disciplines, *Colors of the Robe* sheds new light on the Sri Lankan Buddhist universe of ethics and politics and more important, suggests innovative directions for the global study of religion, identity, culture, politics and violence. In a volume that surpasses other studies in tracking, identifying, and locating Sri Lankan Buddhism in its sectarian, ethnic, culture, social and political constructions, Ananda Abeysekara lays down a challenge of postcolonial and postmodern theory. He argues that although criticisms have undermined the orientalist constructions of culture, they cannot help us understand, let alone theorize, the emergence of contemporary authoritative discourses that define distinctions involving religion and violence, identity and difference. Supplanting that aim, Abeysekara illuminates the shifting configurations that characterize the relations connected with postcolonial religious identity and culture.

Available only at the Suriya Bookshop
425/15, Thimbirigasyaya Road
Colombo 5. Tel: 2501339, 2504623

JAFFNA'S FISHING COMMUNITIES: PERSISTENT CRISIS AND POSSIBLE SOLUTIONS

N. Shanmugaratnam

I read Champika Liyanaarachchi's report captioned 'Sri Lankan Army on Collision Course With Fishermen' with concern. Indeed the damage caused to coral reefs due to the construction of landing sites has to be taken seriously. However, it is not fair at all to stop at the most proximate cause of the problem and impose a quick fix in the name of saving the environment. That may not be a solution and it could well become yet another problem aggravating an already complicated situation. The fishermen of Jaffna, like their counterparts elsewhere, are quite aware of the importance of conserving the coral reefs in their fishing grounds. The construction of landing sites in prohibited areas by the fishermen is a reflection of the desperate situation of a community, which is among the worst hit civilian victims of the protracted war in Lanka. Their right to livelihood and personal security has been continuously violated. However, their plight did not draw the attention of human rights activists for a long time. These fishermen have not only been denied access to their traditional fishing grounds and landing sites because of the High Security Zones but are also being subject to a host of spatial and temporal restrictions on their mobility in the sea around the peninsula and in its lagoons. In the more restricted areas, they have to use fixed points of entry and exit. The coastline in these areas is fenced with barbed wire. Moreover, the pass system enforced by the Lankan Navy restricts their movement to particular areas while not permitting them to return to the coast with their catch before six in the morning. With such restrictions, it is not so easy for hundreds of fishermen to share existing landing sites or to choose environmentally safe areas to construct new ones. In the light of this, I would like to pose two simple questions. What does the Ministry of Defence expect the fishermen to do when it is unable to handle a problem that is causally linked to its own policies and practices in the name of security? Is it wrong on the part of the fishermen to expect the Ministry to adopt a more enlightened approach that enables reconciliation and livelihood construction?

Sensitive Responses

The situation calls for more sensitive, more creative and more humane ways of enabling the fishing communities to rebuild their lives and livelihoods. The Ceasefire Agreement (CFA), the opening up of the A9 highway and the improved communication links between Jaffna and the rest of the country provide a favourable environment for interventions that facilitate individual and collective initiatives by fishermen to rebuild their lives and revive fishery in Jaffna. However, the government has not been able to frame a creative and sensitive policy to enable the

fishing communities to take advantage of the favourable environment. By failing to do this, the government is also missing an opportunity to win the confidence of these communities. I have been to various parts of the coastal regions of Jaffna and have had discussions with many fishermen and office bearers of Fishermen's Cooperatives. Everywhere, the main grievance aired was the denial of the fishermen's fundamental right to fish without harassment. They told me that the pass system, restrictions on mobility and harassment in the name of security checks by Navy personnel make them feel like aliens and poachers in their own fishing areas. Is this an acceptable state of affairs in the North today, more than 20 months after the CFA?

Years of ban and restrictions on fishing in the Northern waters have helped a progressive expansion of the resource stock and hence a significant growth in harvestable surpluses. This should provide a favourable situation for a quicker recovery of the livelihoods of the fishing families (while benefiting the regional and national economies). Indeed the accumulated harvestable surpluses are rightfully theirs. However, the much-needed interventions, which include more socially sensitive and development-oriented policies and material support, have yet to be made. Fishing by local fishermen seems to be one activity that remains more or less completely subordinated to the security considerations and priorities of the government in the North. The security concerns are understandable but the policies and practices should not be counterproductive at a time when rehabilitation of the war-torn communities is an absolutely necessary condition for peace building. More unfortunately, foreign fishermen, including big companies using capital intensive technology, are illegally capturing the benefits of the large stocks of high value resources available in our northern sea at the expense of the local fishing communities and the Lankan economy. Moreover, the danger of the resource stock being depleted due to overfishing by these big time poachers looms large.

Indian Fishermen

It was reported (*Sunday Times*, 17 August 2003) that 34 to 36-foot Indian trawlers with 90-120 horsepower (hp) engines were illegally operating in Sri Lankan waters off Jaffna regularly and the Sri Lankan navy had turned a blind eye to poaching by Indians while strictly enforcing the pass system on Jaffna's fishermen. The fishermen of Jaffna are not permitted to use larger than 15 hp engines. In fact, most of them use small second-hand boats with 8 hp engines. Obviously these small-scale

fishermen are not capable of competing with the poachers who use powerful trawlers, which have on occasions toppled the small boats of the former and also cut through the fishing nets laid by them. We have also heard from local fishermen that the trawlers caused damage to corals and breeding grounds.

Currently, fishing remains banned along some 81 km of the 379 km of the northern coastline. In the early 1980s, around 22,500 families depended on fishing for their livelihood in the peninsula. The majority of these families were displaced during the war. Many of them were displaced more than once and a considerable number sought refuge in India. Displaced fisher families began to return to Jaffna since mid-1996 and by 1998 some 8600 families had returned. This trend accelerated after the CFA. Today, more than 60% of the peninsula's displaced fishing families are back although not all of them are living in their own original homes or villages. Many of the displaced families are still living in welfare camps 'like fish out of water' as an elderly displaced woman in a camp in Uduvil told me in August 2003. The same woman also said that for her peace meant being able to return with her family and others to their native village of Myliddy and revive their lives as a fishing community. The vast majority of Jaffna's fishermen lack the means to rebuild their basic capital stock. A considerable number (probably about a quarter of the total number of fishermen) is unable to do any fishing at all as they are displaced and pauperised. This group also includes female-headed households. The recently concluded

Needs Assessment Survey reported that more than 90% of the boats, engines and gear might have been lost or rendered unusable in Jaffna.

A summary of the main problems and some possible measures to enable livelihood and regional economic revival in Jaffna's fishery sector

The North, which once produced over 25% of the country's fresh fish and 57% of the dry fish output and was an exporter of high value sea food to East Asia, continues to face serious constraints to the revival of its fisheries even 20 months after the signing of the CFA. The deprivations and violations suffered by the fishing communities in Jaffna call for urgent action to enable these victims of the war to rebuild their livelihoods and regain their human dignity.

The matrix below gives an overview of the main problems and some ideas regarding short and medium term solutions. It should be evident that there are some choices for the government in the current phase if it is really keen to ease the hardships of the fishing communities. The government may choose a combination of measures without seriously compromising its security priorities. A deeper exploration of the possibilities may help find more innovative alternatives. The LTTE also has a role to play. It should

Main problem	Possible short and medium-term solutions
Heavy restrictions on fishing, harassment by security personnel; insecurity felt by fishermen	Review the current situation in consultation with representatives of fishermen's cooperatives and District fisheries officials. Consider removing or reducing spatial and temporal restrictions on fishermen's mobility in lagoon and sea. Permit the use of larger than 15 hp engines (raise the upper limit on hp). Permit fishermen to return to shore after finishing fishing without having to wait till 6 am. Practice a more dignified enforcement of the pass system. Reorient and conscientise the security forces that today their role also involves assisting the fishermen to rebuild their lives. Develop better public relations with the fishermen and make them feel that the government is doing its best to support the reconstruction of their livelihoods.
Lack of fishing boats and equipment. Many fishermen depend on old second-hand boats with inefficient 8 hp engines and inadequate equipment. Jaffna had more than 550 3.5t trawlers in 1990 but it has none at present. OBM boats, vallams and catamarans have also been reduced.	Revive/strengthen Fishermen's Cooperatives (FCs). Mobilise funds to provide grants and to set up revolving funds to extend credit to needy fishermen to rebuild their capital stock through FCs; revive the boat building and fishing net industry in Jaffna.
Lack of cold storage Loss of marketable surplus due to lack of	Provide cold storage facilities; improve collection.

storage and timely collection by traders→ loss of income	
Lack of efficient marketing facilities (see above)	Improve marketing facilities; improve collection by introducing more trucks with cold storage facilities. Consult leaders of the FCs Federation, Jaffna Chamber of Commerce and marketing agencies in Colombo.
Lack of processing facilities	Develop processing facilities; revive export of high value seafood, assist FCs Federation
Lack of efficient transport facilities	Related to above.
Lack of landing sites	Remove/reduce restrictions on mobility (time and distance); facilitate sharing of existing landing sites; assist construction of new sites in environmentally safer areas.
LTTE's taxes	Remove taxation of small fishermen; Provide loan facilities to fishermen and local traders through TRO, etc.
Poaching by Indian and other foreign fishermen/ big companies	Take immediate action; dispel widespread perception in the North that SL Navy is colluding with the poachers (especially the Indian) against local fishermen and against national interest.
Displaced fisher families living in welfare centres for many years without alternative livelihoods	Address this as an urgent problem; assist them to find alternative livelihood.

not tax the small fishermen and fish vendors. It should encourage its development agencies to play a more active role in assisting the fishermen to rebuild their livelihoods.

It should be evident from the above that much can be done within the existing security constraints. What is needed is a special livelihood construction package for the fishing communities of the

North in the current and interim phases. Such a package should be designed with due consideration to the peculiarities of the security situations in different parts of the peninsula and the needs of the fishermen to practice lagoon and sea fishing. The authorities will do well not to forget that the environment and people's livelihoods are inseparable and the former cannot be protected as long as the latter is not seriously addressed. ■

Dr. N. Shanmugaratnam is Professor at the Agricultural University, Norway.

lines - May 2003 Vol. 2 No.1

Articles by Vasuki Nesiah, Nanthikesan, Ahilan Kadirgamar, Yasmin Tambiah, Sophia Elek, Muttukrishna Sarvananthan, Jean Dreze, C.R.de Silva, Pradeep Jeganathan

THE OTHER HALF

The road to the top

Kalpana Sharma

THEY adorn the covers of magazines, the front pages of newspapers. The Teen Deviyaan Sheila Dikshit, Vasundhara Raje and Uma Bharati, the three new women chief ministers are being heralded as the symbol of a new day for women in India. Following their election, we now have five women chief ministers in India. So sisters, we should celebrate. But should we?

Increasing the number of women chief ministers by over 100 per cent is a bit like having more women on the boards of major corporations. The latter usually get there because they are members of families that own the companies, the former because politics has become a family business. At least two of the five women chief ministers fall into the latter category.

As a result, they represent nothing more or less than the fact that dynastic politics and keeping business within the family are still established norms in this country. Certainly in terms of assessing an increase in opportunities for women in politics or in business such statistics represent very little, in fact nothing.

Even as there is much talk about "women power" in politics and the "women's vote," it is useful to consider what happens to women who enter business, not just family business. An interesting study by Ujvala Rajadhyaksha, a former Indian Institute of Management (Ahmedabad) graduate, on three corporations in India and the career paths of their women managers throws up some important issues.

Rajadhyaksha studied one financial company and two fast-moving consumer goods (FMCG) companies, both subsidiaries of multinationals. She looked not just at the number of women in top management but conducted qualitative research by speaking to the women who worked within these organisations to see how they perceived the work atmosphere and whether they felt they had a chance of moving ahead in their careers.

The results provide us with interesting insights into the complexities of women's progress, something that is not achieved by having a few symbolic women at the top. What we really need are systemic changes. In the long run, such changes benefit everyone, not just women.

A survey done by Catalyst, a non-profit research organisation committed to the advancement of women in business, reveals that of the Fortune 500 companies worldwide, women constituted only 13.6 per cent of directors. But this was an improvement on 1995, when the percentage was 9.5 per cent. Only one Indian company appears on the Fortune 500 list. Even without equivalent data for

the top 500 companies in India, one can safely conclude that the percentage of women at the very top would be insubstantial.

Predictably, the media projects the few women who do make it to the top, making us believe that there is a sustainable change in the gender equations within corporations and businesses.

The real story is somewhat different. It begins at business school where the percentage of women students remains in the region of 10 per cent. So compared to the number of men entering the market each year, women remain a very small minority.

Then, as Rajadhyaksha found in her study, some companies continue to function in ways that are specifically unhelpful to women. One of the FMCG companies she studied, for instance, had an in-house training programme that made no concessions to the specific difficulties that women might face. For women managers to survive the initiation, they had to set aside all personal choices, such as marriage and children, and essentially become one of the guys. If they got through this early period, they might be noticed for a higher position. But once again, the nature of the company, its orientation towards marketing and sales, meant that women had to be prepared to be transferred and to work in smaller towns. This necessitated separation from families.

For younger women, often recently married with small children, such transfers forced them to resign. The company did not try and work out alternatives for women caught in this bind. As a result, this company had no women in the senior most strata of managers and certainly no women on its board of directors.

By way of contrast, the financial company that Rajadhyaksha studied accommodated the particular needs of women without making it a specific company policy. The nature of work allowed women with very young children to do some of the work from their homes. The company allowed for a zigzag rather than a linear route to the top. In other words, there was not just one way to get to the top. You could take a break, even a change and still make it to the top.

Such flexibility encouraged women to stick it out. As a result the company has been noted as being "woman-friendly."

What does it mean to have a "woman-friendly" policy? According to the women working in this particular company, this meant that women were not made self-conscious about being women, they were not discriminated against for developmental opportunities,

there were no compulsory transfers, there were multiple growth opportunities and there were flexible routes to get to the top.

As a result, 23 per cent of the senior managers in this company were women. On the other hand, in the FMCG company, only eight per cent of all managers were women, only 10 per cent of junior managers, and only one per cent of middle-level managers. There were no women on the board.

The larger lessons of this study suggest that there have to be systemic changes if companies are serious about bringing in greater diversity in their management and encouraging competent women to overcome the hurdles that society places in their career paths.

By the same criteria, more women in politics will be the result of an honest belief that politics must be representative of the electorate. Thus political parties have to introspect and think what it is in their culture that works against women's participation and progress. Can women not come up on their own merit within politics? Must they always have a godfather, or a godmother or a family member to underwrite their journey to the top?

So, even as we say shabaash to Sheila, Vasundhara and Uma, unfortunately their victory does not herald a new dawn for millions of women in India. ■

SSA Peace Publications

Sri Lanka Peace Process 2003 <i>Eds. J. Uyangoda, Morina Perera</i>	Rs. 500/-
Forced Migration and Changing Local Political Economies A Study from North Western Sri Lanka <i>N. Shanmugaratnam</i>	Rs. 300/-
Unitary State, Federal State or Separate State? <i>Ram Manikkalingam</i>	Rs. 100/-
Unitarism, Devolution and Majoritarian Elitism <i>J. Uyangoda, P. Saravanamuttu, S. Liyanage, C. Abeysekera</i> (Sinhala & English)	Rs. 100/-
Intervention in the Devolution Debate <i>Sumanasiri Liyanage</i>	Rs. 200/-
Conflict, Negotiation, Mediation and Peace <i>J. Uyangoda</i>	Rs. 100/-
Beyond Mediation, Negotiation and Negative Peace: <i>J. Uyangoda</i>	Rs. 100/-
ගැටුම්, ගැටුම් සමථනය, මාධ්‍යයන්‍ය සහ සාමය ගොඩනැගීම ජයදේව උයන්ගොඩ	Rs. 100/-
තෙවරල් ක්‍රමය සහ ස්වයං නිර්ණය අයිතිය ජයදේව උයන්ගොඩ	Rs. 100/-